Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(3)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (CLOSURES VARIATION) DIRECTION No. 1 2016

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 6 of 2015 from the Commission, make the following Direction under subsection 41A(3) of the *Fisheries Management Act 1991*.

Dated: 24 May 2016

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures Variation) Direction No. 1 2016*.

Commencement

2. This Direction commences on the day after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Direction is repealed on 1 May 2020 unless earlier revoked.

Interpretation

4. Terms defined in the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Plan) have the same meanings in this Direction as they have in the Plan.

Notes: Terms defined in the *Fisheries Management Act 1991* have the same meanings in this Direction.

Authorised Version F2016L00842 registered 27/05/2016

To whom this Direction applies

5. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

Variation of *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 2 2015*

6. This Direction varies the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 2 2015* by replacing Clause 7 of the instrument from the date of commencement of this Direction with the following Clause:

7. Clause 6 does not apply to concession holders if the holder is already subject to a condition to retain no more than 25 per cent of their total pink ling (*Genypterus blacodes*) quota (caught or uncaught) in waters east of Longitude 147° East at any time.

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